

The Declaration Of Wild Life Stock Rules, 2003

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Union of India - Act

The Declaration Of Wild Life Stock Rules, 2003

UNION OF INDIA

India

The Declaration Of Wild Life Stock Rules, 2003

Rule THE-DECLARATION-OF-WILD-LIFE-STOCK-RULES-2003 of 2003

Published on 18 April 2003

Commenced on 18 April 2003

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The Declaration Of Wild Life Stock Rules, 2003

Published vide Notification S.O. 445(E), 18.4.2003, published in the Gazette of India, Extraordinary, Part 2, Section 3(ii), dated 18.4.2003.

1082.

In exercise of the powers conferred by sub-sections (1) and (3) of section 40-A read with section 63 of the Wild Life (Protection) Act, 1972 (

53 of 1972

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement .-(1) These rules may be called The Declaration of Wild Life Stock Rules, 2003.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Wild Life (Protection) Act, 1972 (53 of 1972

);

(b)

"Form" means the form annexed to these rules;

(c)

all other words and expressions used in these rules shall have the meanings respectively assigned to them in the Act.

3.

Publicity of intent of notification and Assistance in making application .-(1) The Chief Wild Life Warden or the officer authorized by the State Government in this regard shall cause to give wide publicity to the intent of this notification in the regional language through electronic or print media or such other means.

(2)

The Chief Wild Life Warden or the officer authorized by the State Government in this regard shall take necessary action to assist the local communities and individuals especially the poor and illiterate in the declaration of their possession, filling up the specified form and any other matter connected therewith and shall make every attempt to ensure that no individual or community associated with animals is deprived of this opportunity.

4.

Procedure for filing applications .-(1) An application to the Chief Wild Life Warden or the officer authorized by the State Government in this regard shall be presented in the Form annexed to these rules by the applicant either in person or by an agent or by duly authorized legal practitioner or sent by registered post addressed to the Chief Wild Life Warden or the officer authorized by the State Government in this regard of the concerned State or the Union territory.

(2)

The application under sub-rule (1) shall be presented in four complete sets within a period of one hundred and eighty days from the date of publication of these rules.

(3)

The applicant may attach to and present with his application an acknowledgement slip as is given in the Form which shall be signed by the official receiving the application on behalf of the Chief Wild Life Warden or the officer authorized by the State Government in this regard in acknowledgement of the receipt of the application.

5.

Presentation and scrutiny of applications .-(1) The Chief Wild Life Warden or the officer authorized by the State Government in this regard shall endorse on every application the date on which it is presented or deemed to have been presented under that rule and shall sign the endorsement.

(2)

If on scrutiny, the application is found to be in order, it shall be duly registered and given serial number.

(3)

If the application, on scrutiny, is found to be defective, the same shall be returned to the applicant within fifteen days for rectifying the defects and resubmitting the corrected application within fifteen days from the date of its receipt.

(4)

If the applicant fails to rectify the defect within the time allowed under sub-rule (3), the Chief Wild Life Warden or the officer authorized by the State Government in this regard may, by order and for the reasons to be recorded in writing, decline to register the application.

6.

Place of filing application .-The applicant shall file application with the Chief Wild Life Warden or the officer authorized by the State Government in this regard.

7.

Date and place of hearing to be notified .-The Chief Wild Life Warden or the officer authorized by the State Government in this regard shall notify to the parties the date, place and time of hearing of each application, if required.

8.

Decision on applications .-The Chief Wild Life Warden or the officer authorized by the State Government in this regard shall verify the facts mentioned in the application and make such inquiry as may be required.

(2)

The Chief Wild Life Warden shall, as far as possible, decide the application within six months of the date of its presentation and communicate the same to the applicant in writing under his own signature by registered post.

9.

Hearing on application ex parte .-Where on the date fixed for hearing the application, the applicant fails to appear without intimation, the Chief Wild Life Warden or the officer authorized by the State Government in this regard may at their discretion adjourn or decide the application ex parte .

10.

Inquiry by the Chief Wild Life Warden or Authorized Officer .-(1) The Chief Wild Life Warden or the officer authorized by the State Government in this regard shall conduct a detailed inquiry and take all actions as provided in section 41 of the Act.

(2)

A copy of the report pertaining to sub-rule (1) of this rule, shall be provided to the applicant.

11.

Certificate of ownership .-(1) The Chief Wild Life Warden shall provide a certificate of ownership to the applicant whose claim is found valid.

(2)

The certificate of ownership shall be provided as per the provisions of section 42 of the Act.

(3)

The certificate of ownership shall contain the facsimile of the identification mark and in case of live animals the identification number of the transponder (microchip) implanted shall be mentioned in the certificate.

12.

Dealing with declared objects .-Any captive animal, animal article, trophy or uncured trophy declared under sub-section (1) of section 40-A and in respect of which certificate of ownership has not been granted or obtained, shall be treated as government property.

13.

Order to be signed and dated .-Every order of the Chief Wild Life Warden shall be in writing and shall be signed and dated by the Chief Wild Life Warden.

14.

Communication of order to parties .-Every order passed on the application shall be communicated to the applicant either in person or by registered post free of cost.

FORM

APPLICATION UNDER SECTION 40-A OF WILD LIFE PROTECTION ACT, 1972

FOR CERTIFICATE OF OWNERSHIP

To

The Chief Wild Life Warden or the Authorized Officer

State or Union Territory of

.....

(i)I

..,

..,

(Surname)

(First Name)

(Middle Name)

Son/daughter of

..,

..,

..,

(Surname)

(First Name)

(Middle Name)

presently residing at House

Number Taluk..... District State
.....(PIN Code).....and having permanent residence at House No
.....Taluk.....District.....State.....(PIN Code).....

hereby declare that I am in control, custody or possession of captive animal and/or its offspring bred in captivity/ animal article/trophy/uncured trophy/derived from animal (strike out whichever is not applicable) specified in Schedule I or Part II of Schedule 11 of the Wild Life (Protection) Act, 1972 having following description:

1.Common name of the animal species

:

2.Zoological name (Mention sub-species, if any)

:

3.Description of the item

:

4.State the condition o the item (provide four colour photographs of size 8"X6" covering front, left and right profiles and a full photograph)

:

5.Number of item

:

6.Method of procurement : Purchase/gift/inheritance/any other mode specify

:

7.Date of procurement

:

8.Name of person/institution from whom obtained

:

9.Address of person/institution referred to in (6) above

:

10.Size

(in meters/cms.)

:

(i)Length

:

(ii)Width

:

(iii)Height

:

11.Weight

(in Kgs./gms.)

:

12.Any specific mark that can help in identification of the item

:

13.Mention the age and sex in case of live animals

:

(ii)

I hereby declare that the above referred captive animal/item has been kept, stored or maintained at the following address

.....
.....
.....

(iii)

I hereby declare that the above-referred captive animal/item was acquired by me through legal means but no declaration has been made by me under sub-section (1) or sub-section (4) of section 40 of the Wild Life (Protection) Act, 1972.

(iv)

I further declare that I have read and understood the provisions contained in sections 40-A, 42 and 43 of the Wild Life (Protection) Act, 1972 and state that the above shall not be transferred to anyone by any mode except by way of inheritance.

(v)

I hereby give my consent for fixing an identification mark to each item and transponder in case of captive animal and assure that the mark or transponder will not be erased, altered or damaged and in the event of any damage, alteration or change of the mark, I shall inform the competent authority within twenty four hours.

I do hereby declare that the information given above is true to the best of my knowledge and belief.

Place

Date

.....

Signature of the person making the declaration

(Name)

Acknowledgement Slip

Receipt of the application filed by Shri/Smt/.....presently residing at(Full Address and Telephone Number).....in the Office of the is hereby acknowledged.

Office Seal

.....

Signature

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